

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #11	CCRB Case #: 201803792	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/05/2018 4:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/5/2019	Precinct: 42		
Date/Time CV Reported Sat, 05/05/2018 8:05 PM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/14/2018 11:18 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Ortiz	01133	956142	042 PCT
2. POM Paul Polintan	10834	956175	042 PCT
3. POM Mark Mobarek	05668	956938	042 PCT
4. SGT Danny Aguilar	2496	941319	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dennis Vargas	07471	957245	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Luis Ortiz	Abuse: Outside of § 87(2)(b) in the Bronx, Police Officer Luis Ortiz stopped § 87(2)(b)	A . Unsubstantiated
B . POM Paul Polintan	Abuse: Outside of § 87(2)(b) in the Bronx, Police Officer Paul Polintan stopped § 87(2)(b)	B . Unsubstantiated
C . POM Paul Polintan	Abuse: Outside of § 87(2)(b) in the Bronx, Police Officer Paul Polintan threatened to issue a summons to § 87(2)(b)	C . Substantiated
D . POM Mark Mobarek	Abuse: Inside of § 87(2)(b) in the Bronx, Police Officer Mark Mobarek stopped an individual.	D . Substantiated
E . POM Mark Mobarek	Abuse: Inside of § 87(2)(b) in the Bronx, Police Officer Mark Mobarek frisked an individual.	E . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 5, 2018, § 87(2)(b) filed this complaint with IAB in person. The complaint was received at the CCRB on May 14, 2018. On November 28, 2018, this case was reassigned to the undersigned from Inv. John Butler, as Inv. Butler was preparing to leave the agency.

On May 5, 2018, at approximately 4:20 p.m., Police Officer Luis Ortiz, Police Officer Paul Polintan, Police Officer Mark Mobarek, Police Officer Dennis Vargas, and Sergeant Danny Aguilar, all of the 42nd Precinct, arrived at § 87(2)(b) in the Bronx. Outside of § 87(2)(b) in the Bronx, PO Ortiz and PO Polintan stopped § 87(2)(b) (**Allegations A and B: Abuse of Authority, unsubstantiated**). PO Polintan threatened to issue § 87(2)(b) a summons (**Allegation C: Abuse of Authority, substantiated**).

Inside of § 87(2)(b) in the Bronx, PO Mobarek stopped and frisked § 87(2)(b) (**Allegations D and E: Abuse of Authority, substantiated**).

§ 87(4-b), § 87(2)(g)

§ 87(2)(b) was not arrested or issued a summons during this incident.

Video footage was obtained and will be discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Police Officer Luis Ortiz stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Police Officer Paul Polintan stopped § 87(2)(b)

§ 87(2)(g) The following facts are undisputed.

On May 5, 2018, at approximately 4:20 p.m., § 87(2)(b) was outside of § 87(2)(b) in the Bronx sitting next to a hookah. There were approximately four or five other males both outside and inside the building, two of which were identified by the investigation as § 87(2)(b) and § 87(2)(b). PO Ortiz, PO Polintan, PO Mobarek, PO Vargas, and Sgt. Aguilar arrived at the location. PO Ortiz and PO Polintan spoke to § 87(2)(b) outside the building, while PO Mobarek and PO Vargas went inside the building. Sgt. Aguilar stood near the threshold of the door. PO Polintan asked § 87(2)(b) for his identification, which § 87(2)(b) provided. PO Polintan told § 87(2)(b) that he could be issued a summons for open flame in regard to the hookah.

As § 87(2)(b) was standing outside, PO Mobarek and PO Vargas were inside the building speaking with § 87(2)(b) and an unidentified male. PO Mobarek frisked the unidentified male. PO Vargas arrested § 87(2)(b). Shortly thereafter, § 87(2)(b) entered the lobby and was also arrested. § 87(2)(b) and the unidentified male were allowed to leave the location.

According to § 87(2)(b) (BR 04), when officers arrived, they rushed into the building. As § 87(2)(b) did not know what was going on, he tried to leave, but PO Ortiz told he could not leave. PO Ortiz told § 87(2)(b) “You’re trespassing,” “I see lit fire,” and, “I smell marijuana.” The hookah next to § 87(2)(b) was not lit and neither § 87(2)(b) nor the other males had been smoking marijuana.

Sgt. Aguilar asked § 87(2)(b) for his identification, which § 87(2)(b) provided. At this point, § 87(2)(b) believed the officers were going to summons him, however he did not know if the officers said they would summons him. § 87(2)(b) again tried to leave, but the officers would not let him do so.

§ 87(2)(b) stood with the officers for approximately five minutes without conversing with them. § 87(2)(b) could see into the building and saw PO Mobarek and PO Vargas inside the building frisking a male. The male was then handcuffed and removed from the building. A second male was also handcuffed and removed from the building. Sgt. Aguilar returned § 87(2)(b)'s identification to him and told him to leave the location. § 87(2)(b) went into the street and recorded the two males being placed into the police vehicles.

The beginning of PO Polintan's body-worn camera footage (BR 05-06), which contains no audio, shows officers arriving to the scene. § 87(2)(b) is on the stoop of § 87(2)(b). A hookah is next to § 87(2)(b) but it is unclear whether the hookah is lit. PO Ortiz and PO Polintan walk up the stairs and stand on the stoop, speaking with § 87(2)(b). PO Mobarek and PO Vargas immediately enter the building, while Sgt. Aguilar stands on the threshold of the door to the building (<<16:20:31 – 16:20:44>>).

§ 87(2)(b) then speaks to PO Ortiz and says, "I don't smoke weed. I don't know what weed smells like. I don't smoke weed." PO Ortiz responds, "It smells like weed over here. That's why I'm asking (<<16:20:59 – 16:21:08>>).

Sgt. Aguilar, who is not fully in the frame, asks § 87(2)(b) if he lives in the building. § 87(2)(b) says, "What y'all gonna do? What's the purpose of this? [...] You're not arresting me. I didn't break any law." PO Polintan says, "Actually that's open flame right there." § 87(2)(b) says, "That's not mine. I don't do hookah." PO Polintan replies, "You're right next to it." § 87(2)(b) says, "That's not against the law. I know my rights. You're not arresting me. I'm keeping it moving." § 87(2)(b) goes to walk down the stairs of the stoop, but PO Ortiz, who is standing on the stairs, does not let § 87(2)(b) go by. § 87(2)(b) says, "You're holding me for no reason. You're not gonna arrest me. You're not gonna summons me. Just let me go about my way." PO Polintan says, "I already told you what you broke, my friend. That's open flame. You can't have that." § 87(2)(b) says, "That's not mine." PO Polintan replies, "You're next to it and you're in possession of it in a public place" (<<16:21:13 – 16:22:19>>). § 87(2)(b) says, "What you want to do? Summons me?" PO Polintan replies, "I could summons you if I wanted to," and asks for § 87(2)(b)'s identification, which he provides (<<16:22:20 – 16:22:41>>).

PO Ortiz (BR 07) stated that as he was patrolling the area of § 87(2)(b), a gang prone location, with PO Polintan and Sgt. Aguilar, he saw a marked police vehicle in front of § 87(2)(b). PO Ortiz, PO Polintan, and Sgt. Aguilar exited their vehicle to determine what was going on inside the building. As PO Ortiz walked up the stairs to the door of the building, he smelled an odor of marijuana. § 87(2)(b) was sitting next to a lit hookah. PO Ortiz did not recall if he saw § 87(2)(b) smoking marijuana or hookah, but suspected § 87(2)(b) may have been smoking marijuana due to the odor.

PO Ortiz and PO Polintan stood with § 87(2)(b) on the stoop. § 87(2)(b) was not allowed to leave the location because PO Ortiz was trying to determine what was going on inside the building and whether § 87(2)(b) was in fact smoking marijuana. PO Polintan told § 87(2)(b) he could be issued a summons for open flame and asked for § 87(2)(b)'s identification, which § 87(2)(b) provided. Sgt. Aguilar then came out of the building and asked § 87(2)(b) whether he knew anyone inside the building. PO Ortiz did not remember § 87(2)(b)'s response. Sgt. Aguilar then told § 87(2)(b) he was free to go and § 87(2)(b) left. PO Polintan used his discretion and decided not to issue § 87(2)(b) a summons.

PO Polintan (BR 08) did not have an independent recollection of this incident. Upon reviewing his body-worn camera footage, PO Polintan said that if a hookah is lit, an individual could be issued a summons for open flame. PO Polintan did not remember if the hookah was lit

during the incident, did not know if § 87(2)(b) had to be smoking the hookah in order to receive a summons, and did not know if he ever intended to issue § 87(2)(b) a summons. PO Polintan did not remember smelling an odor of marijuana at the location.

Sgt. Aguilar (BR 18) did not have an independent recollection of this incident. Sgt. Aguilar reviewed PO Polintan's body-worn camera footage, but still did not recall if § 87(2)(b) was free to leave during the encounter. Sgt. Aguilar reiterated that § 87(2)(b) often smells like marijuana, but he did not particularly remember if it did so on the day in question.

As will be discussed in further detail below, the investigation could not locate any case law, NYPD Patrol Guide procedures, FINEST messages, or NYPD Operations Orders regarding hookah and open flames. § 87(2)(g)

As such, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Police Officer Paul Polintan threatened to issue § 87(2)(b) a summons.

As discussed in Allegations A and B above, according to § 87(2)(b) (BR 04), when Sgt. Aguilar asked for his identification, § 87(2)(b) thought the officers were going to issue him a summons.

PO Polintan (BR 08) did not have a recollection of this incident, but after reviewing his body-worn camera footage, testified that he could have issued § 87(2)(b) a summons for open flame due to the lit hookah (BR 05-06). However, PO Polintan also testified that he did not know if he ever intended to issue § 87(2)(b) a summons.

The NYC Administrative Code Section FC 308, which addresses open flames, does not list hookah as an "open flame" device or otherwise codify any rules pertaining to lit hookahs or anything that would indicate that it is unlawful to smoke a hookah (or be in the presence of one) in public (BR 16).

The investigation could not find any relevant NYPD Patrol Guide procedures, FINEST messages, or other NYPD Operation Orders issued regarding hookah and open flames and whether smoking hookah on a public street is a crime. According to the NYPD Risk Management Bureau and Department Advocate's Office (DAO), there is no training or NYPD Patrol Guide procedure that allows officers to issue a summons for a hookah.

§ 87(2)(g) Thus, it is recommended that **Allegation C** be closed as **substantiated**.

Allegation (D) Abuse of Authority: Inside of § 87(2)(b) in the Bronx, Police Officer Mark Mobarek stopped an individual.

Allegation (E) Abuse of Authority: Inside of § 87(2)(b) in the Bronx, Police Officer Mark Mobarek frisked an individual.

§ 87(2)(b) (BR 04) did not allege that a third male was stopped and frisked before the individual was allowed to leave the location.

The investigation obtained video footage from the lobby of § 87(2)(b) (BR 05, 09). At the beginning of the video, an unidentified individual, a black male wearing a black sweatshirt, black jeans, and white sneakers is sitting on the stairs counting money. A black male in a black baseball cap, identified by the investigation as § 87(2)(b) takes a black plastic bag off the stairs and walks out of the lobby. A white male in a white t-shirt, identified by the investigation as § 87(2)(b) is also in the lobby.

PO Mobarek enters the lobby and the individual and § 87(2)(b) stand up and walk toward the front door. PO Mobarek initially passes the individual before returning to where the individual is standing. PO Vargas and Sgt. Aguilar also enter the lobby and stand near the door, which is kept open. PO Mobarek uses the back of his right hand to pat the individual's sweatshirt pocket. PO Mobarek then moves his right hand toward the back of the individual, followed by patting the individual's front pants pockets and down his legs. The individual is holding a cell phone in his left hand at the time of the frisk (<<00:00 – 00:38>>).

Neither § 87(2)(b) nor § 87(2)(b) knew the identity of the individual whom PO Mobarek frisked (BR 10).

According to PO Mobarek (BR 11), Lyman Place is gang-prone location. PO Mobarek had an unobstructed view into § 87(2)(b) and saw § 87(2)(b) and § 87(2)(b) who are both known gang members. PO Mobarek ran § 87(2)(b) and § 87(2)(b)'s names on his department-issued cell phone while in the car. The search resulted in warrants for both § 87(2)(b) and § 87(2)(b). PO Mobarek and PO Vargas decided to go inside the location to arrest § 87(2)(b) and § 87(2)(b) pursuant to the warrants.

Inside the lobby, a third male was with § 87(2)(b) and § 87(2)(b). PO Mobarek asked the third male for his identification, but the male did not have any identification on him. The male verbally provided PO Mobarek with his name, which PO Mobarek did not remember at the time of his interview. PO Mobarek performed a warrant check on his cell phone of the name the male provided, which returned negative results. PO Mobarek did not suspect the male of committing a crime, but "as an officer" is allowed to ask an individual for their "pedigree information." The male was free to leave at any time and was not detained.

PO Mobarek and PO Vargas then arrested § 87(2)(b) and § 87(2)(b) in regard to their outstanding warrants.

Upon reviewing the video footage of the frisk (BR 09), PO Mobarek reiterated that he did not suspect the male of committing a crime but wanted to ensure that the male did not have any active warrants. PO Mobarek said he frisked the male "for his safety," but did not suspect the male of having any weapons or object capable of hurting him. Because the officers had stopped § 87(2)(b) and § 87(2)(b) who are known gang-members, and who PO Mobarek believed were the male's friends, PO Mobarek wanted to ensure that he and PO Vargas were safe. PO Mobarek later added that he saw a bulge near the side pocket of the male's pants and wanted to make sure it was not a "knife or gun." PO Mobarek could not describe the bulge and could not describe how the bulge resembled a knife or a gun or why he believed it may have been a knife or a gun. PO Mobarek reiterated that he conducted the frisk "for his safety." PO Mobarek added that the male was free to leave at any time, including during the frisk.

Sgt. Aguilar (BR 18) said that he recognized the black male in the hoodie whom PO Mobarek frisks to be § 87(2)(b), who is also a gang member. After the incident, PO Mobarek told Sgt. Aguilar that he thought § 87(2)(b) was armed with a knife because of the bulges on § 87(2)(b)'s waistband and hoodie. PO Mobarek did not explain why he believed the bulges to be a knife and did not tell Sgt. Aguilar that he suspected § 87(2)(b) of committing a

crime. Sgt. Aguilar also noticed these bulges and thought they resembled a knife because the bulges were located near § 87(2)(b) hip and because § 87(2)(b) has had several arrests involving robberies with knives and firearms. Sgt. Aguilar could not describe why he thought the bulge was a weapon instead of an innocuous object. Sgt. Aguilar denied instructing PO Mobarek to stop and frisk § 87(2)(b) and said that PO Mobarek made the decision independently.

Although Sgt. Aguilar provided a name for the previously unidentified black male, Sgt. Aguilar did not provide further pedigree information for § 87(2)(b). A CLEAR search was performed for the name § 87(2)(b), which returned 32 results, each with differing birth dates and addresses. Without further pedigree information, the investigation could not narrow the search results and identify the correct § 87(2)(b) to obtain a statement from him.

“Where a police officer entertains a reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor, the CPL authorizes a forcible stop and detention of that person. A corollary of the statutory right to temporarily detain for questioning is the authority to frisk if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed” People v. De Bour 40 N.Y.2d 219 (1976) (BR 12).

An officer’s awareness that an area is known for gang activity and observation that an individual made “constant adjustments” to his waistband, did not constitute specific circumstances indicative of criminal activity. People v. Clermont, 133 A.D.3d 612, 20 N.Y.S.3d 85 (App. Div.) (BR 17).

§ 87(2)(g)

It is therefore

recommended that **Allegation D** be closed as **substantiated**.

§ 87(2)(g)

It is therefore

recommended that **Allegation E** be closed as **substantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 01).
- PO Ortiz has been a member of service for four years and this is the first CCRB complaint to which he has been a subject.
- PO Polintan has been a member of service for four years and this is the first CCRB complaint to which he has been a subject.
- PO Mobarek has been a member of service for four years and has been a subject in one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Sgt. Aguilar has been a member of service for 12 years and has been a subject in 13 prior CCRB complaints and 22 allegations, two of which were substantiated:
 - 201502107 involved allegations of threat of force and discourtesy (word). The Board recommended formalized training and the NYPD imposed instructions.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of December 13, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date